

23STCV31191 23STCV31191

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-22

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Case Number: 23STCV31191 Hearing Date: September 22, 2026 Dept: B

Tentative Ruling

Nicholas v. Conningsby & E.

Johnson Trust, Case no. 23STCV31191

Hearing date September 22, 2026

Defendant

Johnson's Motion to Compel Plaintiff Nicholas' Deposition - UNOPPOSED

Plaintiff

Nicholas sues defendant Johnson, erroneously sued as Conningsby & E.

Johnson Trust, by and through its trustee E. Johnson, for premises liability.

Plaintiff alleges she fell, sustaining injury, due to a loose stairwell handrail on defendant's property. This matter was consolidated with LASC Case no. 23STCV28198, between the same parties, wherein plaintiff alleges she slipped due to a leak in her bathroom. Defendant moves to compel plaintiff's deposition. The motion is unopposed.

A

party may move for an order compelling the attendance and testimony of a deponent where the deponent fails to appear for examination following the service of a deposition notice. Code Civ. Proc. §2025.450.

Defendant

request plaintiff's deposition availability on 8/25/25. Decl. Zverev, para. 9, exh. A. Plaintiff failed to provide dates. Id. Defendant served a deposition notice on 1/9/26. Id. at para. 10, exh. B. Plaintiff

objected. Id. at para. 11, exh. C. The parties met and conferred and agreed on an in-person deposition on 4/27/26. Id. at para. 13, exh. D. Plaintiff's counsel re-affirmed plaintiff's intent to attend on 4/22/26. Id. at para. 16, exh. G. Plaintiff's counsel informed defense counsel 13 minutes prior to the scheduled start time that plaintiff would not appear. Decl. Zverev, para. 17, exh. H. Defendant recorded the non-appearance. Id. at para. 18, exhs. I-J. Plaintiff failed to provide new deposition dates. Id. at para. 19. The motion is unopposed; an order compelling plaintiff's appearance is warranted.

Defendant

requests joint and several sanctions of \$3,385.80, of \$1,325 in attorney's fees and \$2,060.80 in non-appearance deposition costs. Decl. Zverev, paras. 20-21. Plaintiff's counsel failed to oppose or explain the failure to provide new deposition dates. It is reasonable for sanctions to be imposed jointly and severally. However, plaintiff's last-minute failure to appear should not be held against her counsel, who did inform defense counsel of plaintiff's non-appearance as soon as counsel learned of that fact. Id. at exh. H. Sanctions related to plaintiff's failure to appear are as to plaintiff only.

Defendant

requests \$1,325 in attorney's fees and costs. Decl. Zverev, para. 20. Defendant requests a reasonable rate of \$265/hour. Id. Defendant requests 5 hours for motion drafting, reply and appearance at hearing. Id. No opposition or reply was filed. The court awards 2 hours for motion drafting and 1 hour for hearing, 3 hours total at \$265/hour. The court awards \$60 in filing costs. Joint and several sanctions of \$855 awarded against plaintiff and plaintiff's counsel.

Defendant

requests \$2,060.80 in non-appearance costs. Decl. Zverev, para. 21, exh. K. Plaintiff's untimely notice and non-appearance caused defendant to incur these costs. Sanctions of \$2,060.80 awarded against plaintiff only.

GRANTED;

plaintiff to appear at noticed deposition within 30 days. Sanctions payable as above within 30 days.